

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NIKITA BRACY,

Petitioner

VS.

JOHN JOSEPH,

Respondent

) Case Number: FDV-25-818755

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO SET ASIDE RESTRAINING ORDER AFTER HEARING FILED
2/25/2026

TENTATIVE RULING

As there is no indication in the record that Mother was served with a copy of the Tentative Ruling Instructions (as required by San Francisco Local Rule 11.7(D)(3)(a)) and because there is an active restraining order, the parties are ordered to appear in person or by Zoom. At the hearing, the Court intends to adopt the following as an order of the Court.. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Nikita Bracy (Mother) and Respondent John Joseph (Father) married on 5/5/2017 and separated on 1/31/2022, for a marriage of 4 years and 8 months. The parties have two minor children, Jeremiah (DOB: 4/25/2018, age 8) and JaNyah (DOB: 6/17/2020, age 6). The parties are self-represented.
- 2) On 11/10/2025, Mother filed a Request for Domestic Violence Restraining Order (DVRO) seeking protection for herself and the parties' two children against Father.

- 3) Following multiple continuances of the hearing date due to lack of service, on 2/25/2026, Mother filed a Proof of Service indicating that Father had been served with her moving papers as well as the Order on Request to Continue Hearing.
- 4) At the hearing on 2/25/2026, Mother appeared and Father did not. The Court entered a one-year Restraining Order After Hearing protecting Mother. The restraining order grants Mother sole legal and physical custody of the parties' children and orders no visitation for Father. The restraining order expires on 2/25/2027.
- 5) Now on for hearing is Father's Request for Order filed 5/4/2026. Father states he was not properly served with Mother's moving papers and asks the Court to set aside the restraining order.
- 6) Per the Proof of Service filed 6/2/2026, Father's Request for Order and related moving papers as well as a blank Responsive Declaration were personally served on Mother on 5/28/2026 by the Sherriff's Department.
- 7) Mother did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that this case has been assigned to the Honorable Judge Luna in Dept. 403 and this hearing was erroneously set in Dept. 404. On the Court's own motion, the hearing on Father's Request for Order filed 5/4/2026 is hereby continued to **Wednesday, 7/22/2026 at 8:30 AM in Dept. 403.**
- 2) The Court will prepare the Findings and Order After Hearing.